

Preamble: Whereas, it is expedient to establish a National Tea and Coffee Development Board and make provisions relating to its functioning, in order to bring about coordination in the work of tea and coffee cultivation and processing, to produce high-quality tea and coffee through the use of modern technology, and to formulate a concrete policy for market management, export and import, and to develop the tea and coffee industries existing in the country in a planned manner;

???? ? ?????????????? ?????????? ??? ?????? ?????????? ?????????? ?????? ?????? ?????? ?? ?? ??????
? ? Parliament has enacted this Act in the twenty-second year of the reign of His Majesty King Birendra Bir
Bikram Shah Dev.

?. ?????????? ??? ? ??????????: (?) ?? ????? ??? "????????? ????? ??? ??? ?????? ?????? ??, ??????" ????? ?
? 1. Short Title and Commencement: (1) This Act may be cited as the "National Tea and Coffee Development
Board Act, 2049 (1992)."

(?) ?? ?? ?????????? ?????????? ?????? ? (2) This Act shall come into force immediately.

?. ?????????: ????? ?? ?????????? ?????? ?????? ?????????? ?? ?????,-
2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (?) "?????" ?????????? ??? ? ??????
????????? ?????? ?????????? ????? ??? ??? ?????? ?????? ?????? ????? ? (a) "Board" means the National Tea
and Coffee Development Board established under Section 3. (?) "?????" ?????????? ??? ? ?????????? ??? ?????
????????????? ?????? ?????????? ????? ? (b) "Committee" means the Executive Committee constituted under
Section 8. (?) "?????????" ?????????? ?????????? ?????????? ?????? ? (c) "Chairperson" means the
Chairperson of the Committee. (?) "?????" ?????????? ?????????? ?????? ?????????? ????? ? ?? ?????????? ??????????
?????????, ?????????????? ??? ?????? ?????????? ?????? ?????????? ? (d) "Member" means a member of the
Committee, and such term shall also denote the Chairperson, Vice-Chairperson, and Member-Secretary of
the Committee. (?) "????????????? ??????????" ?????????? ??? ?? ?????????? ?????????? ????? ?? ?????????? ?????????????
????????????? ?????????? ????? ? (e) "Executive Director" means the Executive Director appointed or designated
under Section 14. (?) "?????????" ?????????? ?????????? ?????? ?????? ??? ?????? ?????? ?????? ?????????????
????????????????? ?????????? ?????? ?????? ?????? ?????? ? (f) "Processing" means the act of processing green tea
leaves and coffee beans by any mechanical process. (?) "?????????" ?????????? ????? ?? ??? ?????????? ??????
????????????? ?????????? ????? ? (g) "Producer" means a person engaged in the business of producing tea or coffee.
(?) "?????????" ?? "?????? ?????????" ?????????? ?? ?? ?????????? ?????? ?????????? ?????????? ?? ?????? ?????????
????????? ?????? ? (h) "Prescribed" or "as prescribed" means prescribed or as prescribed in the regulations made
under this Act. ?. ?????????? ?????????? : ?????????????????????? ?????? ??? ??? ?????????? ?????? ??????????
????????????? ?????????? ??? ?????? ??? ?????? ?????????????? ?????????????? ?????? ??? ??? ?????????????? ??????????????
??? ?????????????? ?????????? ??? ??? ?????????? ?????????????? ?????? ??? ??? ?????? ?????????? ?????????? ????????? ?
? 3. Establishment of Board: A National Tea and Coffee Development Board is established to formulate plans
relating to the development of the tea and coffee industry at the national level and to make the tea and coffee
industries operated in the private and public sectors more robust in a systematic and effective manner. ?.
?????? ?????????? ?????????? ?????? : (?) ?????? ?????????????????? ?????????????????????? ?? ?????????? ? ?????????? ?????????
???????? ? 4.

Board to be a Body Corporate: (1) The Board shall be an autonomous and incorporated body with perpetual
succession.

(?) ?????????? ??? ?????????????? ?????????? ?????? ?????? ?????? ??? ?????? ? (2) The Board shall have its own
separate seal for its activities.

(?) ?????????? ?????????? ??? ?? ??? ?????????? ?????????? ?????, ?????? ?????, ?????????? ????? ?? ?????? ??????????
????????????? ?????? ?????? ? (3) The Board may, like a natural person, acquire, use, sell, or otherwise manage
movable and immovable property.

(?) ?????????? ?????????? ??? ?????? ?????????? ?????? ?????? ?????? ? ?????? ??? ??? ?????? ?????????? ?????? ??????

????? ?????? ? (4) The Board may, like a natural person, sue and be sued in its own name.

?. ??????? ????????? : (?) ??????? ?????? ?????????? ?????????? ?????????? ?????? ? 5. Office of Board: (1) The principal office of the Board shall be located in Kathmandu Valley.

(?) ??????? ?????????? ??????? ?????? ?????????? ?????????? ??? ?????? ?????? ?????? ?????? ?????? ??, ?????? ?????????? ? ?????? ?????? ?????????????? ?????? ??????? ? (2) The Board may open branch offices within Nepal deleted by the Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 (2009). as required.

?. ????????? ?????????? : ?????????? ?????????? ?????? ??????? ?????? :-
6.

Objectives of Board: The objectives of the Board shall be as follows:-

(?) ????? ??? ??? ?????????? ?????????? ?????? ?????????, ?????????, ?????? ?????????????? ??? ??????? ??????? ?????????? ?????? ?????????? ??? ?????????????????? ?????? ???????,

(a) to formulate and cause to implement policies relating to production, processing, market management, and export and import for the development of the tea and coffee industry,

(?) ????? ??? ??? ?????? ?????????? ?????????? ?????? ?????? ?????????????????? ?????????? ?????????? ?????? ???????, (b) to identify measures for resolving problems arising in the development of the tea and coffee cultivation industry,

(?) ????? ??? ??? ?????????? ?????????? ?????? ?????? ??? ??? ?????? ? ?????????????? ?????? ??????? ?????? ?????????????????? ?????????????? ?????????? ???????, ???????,

(c) to make or cause arrangements for the supply of materials required for tea and coffee cultivation and processing for the development of the tea and coffee industry,

(?) ????? ??? ??? ?????????? ?????????? ?????? ?????? ??? ?????????????? ?????????? ?????????? ??? ?????? ??? ??? ?????????????? ?????????? ?? ?????????????????? ?????????? ?????????????? ??????, ?????????????? ? ?????????????? ?????? ?????????,

(d) to establish training and research centers for the development of the tea and coffee industry and to provide modern technical knowledge, training, and technical assistance to individuals or entities engaged in the tea and coffee industry,

(?) ????? ??? ??? ?????????? ?????????? ?????? ??????? ?????????? ??????, ???????, (e) to conduct or cause necessary studies for the development of the tea and coffee industry,

(?) ????? ??? ??? ?????????? ?????????????? ?????????? ?????????????????? ?????????? ???????, (f) to coordinate with entities working in the field of the tea and coffee industry,

(?) ????? ??? ??? ?????????????? ??????? ?????????????? ? (g) to render assistance to the tea and coffee industry.

?. ?????????? ???, ?????????? ? ????????? : ?????????? ???, ?????????? ? ?????????? ??????? ?????????? ??????:-
7.

Functions, Duties and Powers of Board: The functions, duties and powers of the Board shall be as follows:-

(?) ?????? ?????????????? ?????????????? ??? ?????? ?????? ?????? ?????????? ??????? ??, ?????? ?????????? ?????????? ? ?? ?????? ??? ??? ?????????? ?????????? ??? ??????? ??????? ?????? ??? ??? ?????????????? ??????????, ??????, ?????????????????? ??? ?????????? ?????? ?????????? ?????? ?????????????????? ??????, ???????,

(a) to formulate and cause to implement policies necessary for the establishment, improvement, promotion and protection of the tea and coffee industry to cause the expansion and development of tea and coffee cultivation in Nepal deleted by the Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 (2009).,

(?) ????? ??? ??? ?????? ????? ? ?????????? ????? ?????? ?????? ?????????? ??? ??????? ????????? ????? ?????? ??????? ?????????????? ??????, ???????,

(b) to prepare the necessary technical and financial bases for the development and expansion of tea and coffee cultivation and to implement or cause implementation accordingly,

(?) ????? ??? ?????? ?????????? ??????????? ?????? ?????????? ?????????? ?????,

(c) to advise the Government of Nepal on matters relating to the price of tea and coffee,

(?) ????? ??????? ????? ??? ??? ?????? ?????? ?????????????? ??????? ?????? ??????, ???, ???????, ?????????? ??, ?????????? ?????, ?????, ?????, ??????????? ?????, ?????? ??????????? ?????????? ??????, ???????,

(d) to make or cause arrangements for the supply of necessary credit, seeds, saplings, chemical fertilizers, pesticides, tools, fuel, technical services, etc., to farmers engaged in small-scale tea and coffee cultivation,

(?) ????? ??? ??? ?????? ?????????? ??????? ?????? ??????????? ?????? ?????????? ??????? ??? ????? ??? ??? ?????????? ?? ??? ?? ?????????????????? ??? ????? ??? ??? ?????? ???????,

(e) to obtain suitable government waste lands from the Government of Nepal for tea and coffee planting and to have tea and coffee cultivated by planting or by giving on lease or installment basis,

(?) ????? ??? ??? ?????? ??????????????? ?????? ????? ??? ?????? ?????? ??????????? ??? ??????????? ?????????? ?????? ??? ?????? ??????? ? ?????? ??? ?????? ?????? ? ?????? ??? ?????? ?????????? ?????????? ??????, ???????,

(f) to conduct market surveys from time to time to develop the tea and coffee market system, to ascertain the grades and types of tea and coffee preferred by consumers, and to determine or cause determination of the quality of tea and coffee,

(?) ?????????????????????? ??????? ????? ??? ?????? ??? ??????????? ?????????????????????????? ?????????? ???????,

(g) to inform exporters regarding the demand for tea and coffee in the international market,

(?) ?????? ??????????? ??????????? ??? ?????? ?????? ?????? ??????? ?????? ??, ?????? ??????? ?????????? ? ?? ?????? ??? ?????? ?????????? ?????? ??? ?????????? ?????????? ?????? ??????? ?????????? ??????, ???????,

(h) to conduct or cause necessary studies for the development and expansion of the tea and coffee industry in Nepal deleted by the Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 (2009).,

(?) ????? ??? ??? ?????????? ?????????? ?????????? ?? ?????????????????? ??????????? ??????, ??????????? ??? ??????????? ?????? ?????? ?????? ?????? ??? ??????????? ?????????? ?????????? ??????, ???????,

(i) to establish or cause establishment of training and research centers to provide technical knowledge, training, and technical assistance to individuals or entities engaged in the tea and coffee industry,

(?) ????? ??? ??? ?????????? ??????? ?????????????????? ??? ?????????? ?????? ?? ?????????????????? ?????????? ??????? ??????, ?????????? ??? ?????? ??????? ??????? ??????? ?????????? ???????,

(j) to make necessary arrangements to provide such persons with necessary training, seminars, and higher education abroad for the skill development of persons involved in the tea and coffee industry,

(?) ????? ??? ??? ?????????? ?????????? ?????? ??????? ??? ?????? ?????????????????? ?????????? ?????????????????? ?????????? ??????, ???????,

(k) to coordinate or cause coordination of efforts being made in the government and private sectors for the

(i) Executive Director, Nepal Agricultural Research Council ? Member

??, ?????? ??, ?????? ? ?????? : (?) ?? ?? ? ?? ?? ????????? ?????? ????????? ?????? ??? ??????
 ?????? ?????? ?????????? ??? ????????? ??????, ?????????????? ??????? ??? ?????????? ?????? ?????? ?????????
 ?????????? ?????? ? 10. Functions, Duties and Powers of Committee: (1) Subject to this Act and the regulations
 made under this Act, it shall be the duty of the Committee to carry out all functions, exercise powers, and
 perform duties that are to be done by the Board.

(?) ?????? ?? ?? ?????? ?????? ?????? ?????????? ?????? ?? ?? ????? ?????? ?????????? ?????? ?????
????? ?? ?? ?? ?????????? ??-????? ?? ?????????? ?????? ?????? ?????????????? ?????? ?????? ? (2) The
Committee may delegate all or any of the powers vested in it under this Act to any member, a sub-committee
under Section 11, or any officer or employee of the Board, as required.

?? . ?????????? ??? ????? ?????? : (?) ?????????? ?????? ?????? ?????????????? ?????? ?????????? ?????? ??????????????
??? ????? ?????? ? 11. May Constitute Sub-Committee: (1) The Committee may constitute sub-committees
as required for the conduct of its business.

(?) ?????????????? ???, ?????????, ??????, ?????????????????? ??? ?????????????? ?????????? ?????? ?????? ?????? ? (2)
The functions, duties, powers, jurisdiction, and procedures of a sub-committee shall be as specified by the
Committee.

?? . ?????????? ??? : (?) ?????????? ?????? ?????? ??? ?????? ? 12.